

26NNCV00857 26NNCV00857

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-07-31

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Case Number: 26NNCV00857 Hearing Date: July 31, 2026 Dept: D

TENTATIVE RULING

Calendar: 8

Date: July 31, 2026

Case No: 26NNCV00857 Trial Date: Not yet set

Case Name: Rousos v. Demerjian, et al.

MOTION TO SEAL

[CRC § 2.550]

Moving Party: Plaintiff, Rochelle Rousos

Responding Party: Defendant, Gary Demerjian

RELIEF REQUESTED:

Seal this action and permit Plaintiff to proceed under a pseudonym

CAUSES OF ACTION: from Form Complaint

1) General Negligence

2) Intentional Tort

SUMMARY OF FACTS:

The Complaint alleges that on November 6, 2024, Rochelle Rousos ("Plaintiff") sought a routine TMJ evaluation from Dr. Gary Demerjian ("Defendant"). Plaintiff alleges that she provided conditional consent explicitly warning Defendant not to perform any maneuvers that could potentially cause any injury, as she had previously recovered from a healed left subcondylar fracture. The Complaint alleges that despite this express limitation, Defendant intentionally applied extreme physical force on Plaintiff's jaw at injury site. Plaintiff alleges that she has suffered traumatic physical injury, including bony changes, facial alterations, changes in bite, and ongoing pain and suffering as a result of Defendant's actions. Plaintiff alleges that Defendant has intentionally "blacklisted" Plaintiff by communicating false or misleading information to subsequent specialists to discourage them from providing necessary medical treatment. Lastly, Plaintiff alleges that Defendant has purposefully withheld or provided unreadable "raw data" from the CBCT scans taken on the day of the incident in order to conceal the extent of the injury Defendant allegedly caused.

ANALYSIS:

A request to proceed under a pseudonym is subject to the same analysis as a motion to seal court records. (*Roe v. Smith* (2025) 116 Cal.App.5th 227, 247-248; *Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 111.)

"Much like closing the courtroom or sealing a court record, allowing a party to litigate anonymously impacts the First Amendment public access right. Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party's request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public's right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur 'only in the rarest of circumstances.'" (*Department of Fair Employment and Housing*, supra, 82 Cal.App.5th at p. 111.)

"Before allowing a party to litigate under a pseudonym, the trial court must expressly find facts establishing an overriding interest that overcomes the right of public access to court records, and find a substantial probability that interest will be prejudiced if a pseudonym is not used." (*Roe*, supra, 116 Cal.App.5th at p. 247 [citing Cal. Rules of Court, rule 2.550(d)(1)–(3)].) "The trial court must also find use of the pseudonym is narrowly tailored to serve the overriding interest, and there is no less restrictive means of achieving the overriding interest." (*Ibid.* [citing Cal. Rules of Court, rule 2.550(d)(4)–(5)].) "In performing the analysis under California Rules of Court, rule 2.550(d), courts may rely upon factors set forth in relevant federal cases for their persuasive value. What factors are relevant, the weight to which they are entitled, and even which way they cut, may depend on the precise interest and circumstances identified in each case." (*Id.*, at p. 248.)

Plaintiff moves to seal the records in this action and proceed anonymously under the pseudonym Jane Doe. Plaintiff asserts that she has an overriding interest in the protection of her health and safety which supports sealing the record. (*Mot.*, p. 2:16-17.) Plaintiff asserts that if her name becomes public, "it can make it even more difficult to get urgent and needed medical help." (*Rousos Decl.*, ¶ 5.) This showing is not sufficient to warrant sealing the entire current and future record in this action and allowing Plaintiff to proceed anonymously. While Plaintiff has an interest in protecting her medical information, the Court does not find that, under the circumstances here, this interest is an overriding interest that overcomes the right of public access. The medical information at issue pertains to an alleged jaw injury. This is not the type of sensitive and highly personal medical information that warrants sealing the entire record. Nor has Plaintiff demonstrated that her request is "narrowly tailored to serve the overriding interest" or the "[least] restrictive means of achieving the overriding interest." (*CRC*, rule 2.550.) Moreover, it is impractical to require Plaintiff and Defendant to file every document in this action under seal and Plaintiff's request would severely impair Defendant's right to conduct discovery and put on a proper defense.

Thus, the motion is DENIED.

RULING:

Plaintiff Rochelle Rousos's Motion to Seal is DENIED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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